

However, trial courts are to use such a sanction sparingly, especially when used as a first measure, and should often consider less severe alternatives in a first attempt to prod a party to comply. *Lopez v. Watchtower Bible and Tract Society of New York, Inc.* (2016) 246 CA4th 566, 604.

In the instant matter, the Defendant has failed to follow the court's order to respond to Plaintiff's discovery request, an order that was issued on July 22, 2024, and required compliance within 20 days. No response has been provided by Defendant in well over a year.

Yet this is the court's first impression of this request since the court's own order compelling responses on July 22, 2024. The court notes that in that hearing no warning was given to the Defendant that terminating sanctions may flow for a failure to comply.

As a consequence, this court feels evidentiary sanctions are appropriate.

Disposition

Plaintiff's motion is granted in part and denied in part.

Plaintiff's request for Terminating Sanctions is denied.

Evidentiary Sanctions against the Defendant are granted.

Defendant will be precluded from presenting any affirmative evidence on any topic related to the discovery matters at issue in the court's order on July 22, 2024. Specifically, the Defendant shall not be permitted to present any evidence on issues related to the first sets of requests for admissions, form interrogatories, and document requests that were propounded by the Plaintiff.

Plaintiff to draw Order and file.

15. 9:00 AM CASE NUMBER: N25-2433
CASE NAME: UFCW-NORTHERN CALIFORNIA EMPLOYERS JOINT PENSION TRUST FUND (FUND NO. 100) VS. JUG SHOP, INC.
HEARING IN RE: VERIFIED PET. TO CONFIRM
ARBITRATION AWARD & FOR
ATTY FEES
FILED BY: UFCW-NORTHERN CALIFORNIA EMPLOYERS JOINT PENSION TRUST FUND (FUND NO. 100)
***TENTATIVE RULING**

Petitioner filed a Petition to Confirm Arbitration Award on November 26, 2025. The hearing on the matter is scheduled for January 20, 2026.

The Petition is unopposed, yet there is no indication that Respondent has been served with notice of this hearing.

Disposition

Petition is continued for at least 60 days for Petitioner to serve Respondent.